

PROCUREMENT AGREEMENT

Agreement Reference: CNTR-7563

Effective Date: March 6, 2023

Expiry Date: March 6, 2026

1. Parties

Supplier: Red Bull

Address: 700 Anderson Hill Road, Purchase, New York, 10577, United States

Contact Person: Robert Williams

Phone: +1 (555) 678-5678

Email: robert.williams@redbull.com

Buyer: Woolworths Group

Address: 1 Woolworths Way, Bella Vista, New South Wales, 2153, Australia

Contact Person: Sophie Martin

Phone: +61 (2) 8885-3333

Email: sophie.martin@woolworthsgroup.com.au

2. Product Description

Product Name: As specified in individual Purchase Orders (PO).

Quantity: As specified in individual Purchase Orders (PO).

Quality Standards:

Products must comply with ISO 9001:2015 for quality management systems.

Buyer will conduct inspections within 5 business days of delivery.

3. Payment Terms

Payment Terms: Payments are due 40 days from the invoice date.

Late Payment Penalty: A 3.8% interest per month applies to overdue payments.

4. Delivery Terms

Delivery Timeline: Products must be delivered within 8 business days of PO confirmation.

Delivery Locations: As specified in individual Purchase Orders.

Late Delivery Penalty:

A 2.8% penalty per week of order value for late deliveries.

Maximum penalty: 16% of order value.

5. Contract Renewal and Termination

Renewal Clause:

The contract is eligible for automatic 4-year renewal unless terminated 110 days prior to expiry.

Termination Conditions:

Failure to meet delivery schedules 3 consecutive times.

Quality non-compliance in more than 2 batches.

Mutual termination with 110 days' written notice.

6. Risk Management and Compliance

Supplier must ensure:

Products meet all applicable safety and environmental regulations.

Safe transit standards to prevent damage.

Buyer reserves the right to:

Conduct quarterly audits of product quality and compliance.

7. Contractual Penalties and Quality Assurance

Quality Penalties: A 8.0% penalty applies for any defective batches